

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF SVINTSOVA AND OTHERS v. RUSSIA

(Applications nos. 25557/17 and 11 others –
see appended list)

JUDGMENT

STRASBOURG

1 June 2023

This judgment is final but it may be subject to editorial revision.



In the case of Svintsova and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Faris Vehabović*, President*,
Armen Harutyunyan,
Anja Seibert-Fohr*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 11 May 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018; *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019; and *Teslenko and Others v. Russia*, nos. 49588/12 and 3 others, §§ 72-74 and 81-82, 5 April 2022, as to administrative escorting to and/or detention in a police station beyond three hours for non-custodial offences,

without substantiating the impossibility to compile an offence report at the rally venue or any exceptional circumstances or another valid ground under the Code of Administrative Offences (CAO) or continued detention after the offence report was compiled; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the CAO.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Articles 5 and 6 of the Convention concerning other aspects of their deprivation of liberty and fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Articles 5 and 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

7. *Dismisses* the remainder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 1 June 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Faris Vehabović
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	25557/17 06/03/2017	**Tatyana Fedorovna SVINTSOVA** 1973	Zboroshenko Nikolay Sergeyevich Mytishchi	Meeting in support of N. Savchenko Moscow 08/03/2016	Article 20.2 § 5 of CAO	Administrative fine RUB 10,000	Moscow City Court 08/09/2016	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
2.	53179/17 13/07/2017	**Vladimir Yuryevich DOROKHOV** 1985	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Tula 26/03/2017	Article 20.2 § 5 of CAO	Administrative fine RUB 10,000	Tula Regional Court 27/04/2017	Art. 5 (1) - unlawful detention - escorting to the police station on 26/03/2017 where the applicant was held from 3 to 8 p.m. There is no evidence/assessment that it was impossible to draw up an offence record on the spot (Article 27.2 § 1 of the CAO) and to achieve the goals set by Art. 27.1 of CAO, e.g., to identify the suspect.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	54083/17 17/07/2017 and 8662/20 03/02/2020	**Ilya Aleksandrovich YERMOLAYEV** 1984	Terekhov Konstantin Ilyich Moscow Memorial Human Rights Centre Moscow	Anticorruption rally Khabarovsk 26/03/2017 Rally for fair elections Moscow 27/07/2019	Article 20.2 § 1 of CAO Article 20.2 § 1 of CAO	Administrative fine RUB 10,000 Administrative fine RUB 20,000	Khabarovsk Regional Court 23/05/2017 Moscow City Court 24/09/2019	Art. 5 (1) - unlawful detention – 1) Escorting to the police station and administrative arrest on 26/03/2017 from 3 p.m. to 5.47 p.m.; 2) lack of legal grounds for escorting to the police station on 27/07/2019 from 3 to 6 p.m.; There is no evidence/assessment that it was impossible to draw up an offence record on the spot (Article 27.2 § 1 of the CAO) and to achieve the goals set by Art. 27.1 of CAO, e.g., to identify the suspect. Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings	4,000
4.	83271/17 03/12/2017	**Mariya Aleksandrovna VOYEVODINA** 1980	Ratnikova Svetlana Sergeyevna St Petersburg	Anticorruption rally St Petersburg 26/03/2017	Article 20.2 § 5 of CAO	Administrative fine RUB 10,000	St Petersburg City Court 22/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;	5,000
5.	83319/17 03/12/2017	**Oleg Otariyevich KOIAVA** 1978	Ratnikova Svetlana Sergeyevna St Petersburg	Anticorruption rally St Petersburg 26/03/2017	Article 20.2 § 5 of CAO	Administrative fine RUB 10,000	St Petersburg City Court 06/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;	5,000
6.	83941/17 08/12/2017	**Nikita Igorevich ROLIN** 1998	Memorial Human Rights Centre Moscow	Anticorruption rally Moscow 26/03/2017	Article 19.3 § 1 of CAO	Administrative fine RUB 1,000	Moscow City Court 08/06/2017	Art. 5 (1) - unlawful detention - escorting to a police station and administrative arrest from 5.30 p.m. on 26/03/2017 until 2.20 a.m. on 27/03/2017; detention in excess of 3 hours; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
7.	2702/18 16/12/2017	**Amir Ramilevich VYALSHIN** 1997	Zboroshenko Nikolay Sergeyevich Mytishchi	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	Administrative fine RUB 20,000	Moscow City Court 12/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;	5,000
8.	6378/18 16/12/2017 and 13966/20 28/02/2020	**Stanislav Olegovich BELYANSKIY** 1965	Antokhin Yevgeniy Vyacheslavovich Moscow	Anticorruption rally Moscow 12/06/2017 Rally for fair elections to Mosgorduma Moscow 14/07/2019 Rally for fair elections to Mosgorduma Moscow 27/07/2019 Rally in support of the accused in "Set" and "Novoye Velichiye" cases Moscow 13/05/2019	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	Administrative detention of ten days Administrative fine of RUB 10,000 Administrative fine of RUB 15,000 Administrative fine of RUB 10,000	Moscow City Court 19/06/2017 Moscow City Court 14/07/2020 Moscow City Court 18/09/2019 Moscow City Court 30/08/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings; Art. 5 (1) - unlawful detention - The applicant complained of his detention on 13-14/05/2019, 14-15/07/2019, and 27-29/07/2019; there is no evidence/assessment that it was impossible to draw up an offence record on the spot (Article 27.2 § 1 of the CAO) and to achieve the goals set by Art. 27.1 of CAO, e.g., to identify the suspect.	6,000
9.	9691/18 09/02/2018	**Konstantin Vladimirovich FILIPPOV** 1986	Zboroshenko Nikolay Sergeyevich Mytishchi	Anti-governmental rally Moscow 02/04/2017	Article 20.2 § 6.1 of CAO	Administrative fine RUB 20,000	Moscow City Court 10/08/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;	5,000

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10.	9848/18 12/02/2018	**Filipp Vladimirovich KHODANOV** 1995	Zboroshenko Nikolay Sergeyevich Mytishchi	Anticorruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	Administrative fine of RUB 10,000	Moscow City Court 14/08/2017	Art. 5 (1) - unlawful detention - Escorting to a police station and administrative arrest from 1.45 p.m. on 26/03/2017 to 7 a.m. on 27/03/2017; detention in excess of three hours; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;	5,000

[1] Plus any tax that may be chargeable to the applicants.